Horry County Government
Code Enforcement
1301 2nd Ave Conway
Conway, SC, 29526
843.915.5090

POOL FENCE AFFIDAVIT

As owner of the property located at

_____, _____, _____, _____,
(Address) (City) (State) (Zip)

I understand that as the homeowner I am responsible of the requirements for a pool in accordance with Section 305 of the International Swimming Pool and Spa Code (ISPSC) titled BARRIER REQUIREMENTS, which has been adopted by Horry County, and take full responsibility as the property owner for ensuring the pool fence or barrier is constructed in accordance with these requirements.

*All swimming pools shall conform to the **2021 International Swimming Pool and Spa Code** (ISPSC). All swimming pools shall be enclosed by barriers/gates. All doors with direct access to the pool and operable windows, where the wall acts as a barrier, shall be equipped with an alarm. All barrier/gates/alarms will be inspected at the time of the final pool inspection. The barrier/gates/alarms must be in place before the final inspection of the pool is requested.*

In addition, the pool shall not be used until Horry County has conducted and approved all applicable inspections. The permit is in good standing for 180 days and each inspection renews for 180 days. If no inspections performed the permit will expire after 180 days.

By signing and acknowledging below, as the homeowner, I have read and received the requirements as stated.

Owner's Name (PRINT)	Owner's Phone Number
Owner's Signature	Date

Notary

The foregoing was acknowledged before me this_____day of _____

Notary Signature	My Commission Expires

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Applicable ISPSC Code Sections

Section 305
Barrier Requirements

305.1 General.
The provisions of this section shall apply to the design of barriers for pools and spas. These design controls are intended to provide protection against the potential drowning and near drowning by restricting to such pools or spas. These requirements provide an integrated level of protection against potential drowning through the use of physical barriers and warning devices.

Exceptions:

1. Spas and hot tubs with a lockable safety cover that complies with ASTM F 1346.
2. Swimming pools with a powered safety cover that complies with ASTM F 1346. The label will be on the fabric.

305.2 Outdoor swimming pools and spas.
Outdoor pools and spas and indoor swimming pools shall be surrounded by a barrier that complies with Section 305.2.1 through 305.7.

305.2.1 Barrier height and clearances.
Barrier heights and clearances shall be in accordance with all of the following:

1. The top of the barrier shall be not less than 48 inches (1219 mm) above grade where measured on the side of the barrier that faces away from the pool or spa. Such height shall exist around the entire perimeter of the barrier and for a distance of 3 feet (914 mm) measured horizontally from the outside of the required barrier.
2. The vertical clearance between grade and the bottom of the barrier shall not exceed 2 inches (51 mm) for grade surfaces that are not solid, such as grass or gravel, where measured on the side of the barrier that faces away from the pool or spa.
3. The vertical clearance between a surface below the barrier to a solid surface, such as concrete, and the bottom of the required barrier shall not exceed 4 inches (102 mm) where measured on the side of the required barrier that faces away from the pool or spa.
4. Where the top of the pool or spa structure is above grade, the barrier shall be installed on grade or shall be mounted on top of the pool or spa structure. Where the barrier is mounted on the top of the pool or spa, the vertical clearance between the top of the pool or spa and the bottom of the barrier shall not exceed 4 inches (102 mm).

305.2.2 Openings.
Openings in the barrier shall not allow passage of a 4-inch-diameter (102 mm) sphere.

305.2.3 Solid barrier surfaces.
Solid barriers that do not have openings shall not contain indentations or protrusions that form handholds and footholds, except for normal construction tolerances and tooled masonry joints.

305.2.4 Mesh fence as a barrier
Mesh fences, other than chain link fences in accordance with Section 305.2.7 , shall be installed in accordance with the manufacturer's instructions and shall comply with the following:

1. The bottom of the mesh fence shall be not more than 1 inch (25 mm) above the deck or installed surface or grade.
2. The maximum vertical clearance from the bottom of the mesh fence and the solid surface shall not permit the fence to be lifted more than 4 inches (102 mm) from grade or decking.

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3. The fence shall be designed and constructed so that it does not allow passage of a 4-inch (102 mm) sphere under any mesh panel. The maximum vertical clearance from the bottom of the mesh fence and the solid surface shall be not greater than 4 inches (102 mm) from grade or decking.
4. An attachment device shall attach each barrier section at a height not lower than 45 inches (1143 mm) above grade. Common attachment devices include, but are not limited to, devices that provide the security equal to or greater than that of a hook-and-eye-type latch incorporating a spring-actuated retaining lever such as a safety gate hook.
5. Where a hinged gate is used with a mesh fence, the gate shall comply with Section 305.3.
6. Patio deck sleeves such as vertical post receptacles that are placed inside the patio surface shall be of a nonconductive material.
7. Mesh fences shall not be installed on top of on ground residential pools.

305.2.5 Closely spaced horizontal members.
Where the barrier is composed of horizontal and vertical members and the distance between the tops of the horizontal members is less than 45 inches (1143 mm), the horizontal members shall be located on the pool or spa side of the fence. Spacing between vertical members shall not exceed $1^3/_4$ inches (44 mm) in width. Where there are decorative cutouts within vertical members, spacing within the cutouts shall not exceed $1^3/_4$ inches (44 mm) in width.

305.2.6 Widely spaced horizontal members.
Where the barrier is composed of horizontal and vertical members and the distance between the tops of the horizontal members is 45 inches (1143 mm) or more, spacing between vertical members shall not exceed 4 inches (102 mm). Where there are decorative cutouts within vertical members, the interior width of the cutouts shall not exceed $1^3/_4$ inches (44 mm).

305.2.7 Chain link dimensions.
The maximum opening formed by a chain link fence shall be not more than $1^3/_4$ inches (44 mm). Where the fence is provided with slats fastened at the top and bottom that reduce the openings, such openings shall be not greater than $1^3/_4$ inches (44 mm).

305.2.8 Diagonal members.
Where the barrier is composed of diagonal members, the maximum opening formed by the diagonal members shall be not greater than $1^3/_4$ inches (44 mm). The angle of diagonal members shall be not greater than 45 degrees (0.79 rad) from vertical.

305.2.9 Clear zone.
There shall be a clear zone of not less than 36 inches (914 mm) between the exterior of the barrier and any permanent structures or equipment such as pumps, filters and heaters that can be used to climb the barrier.

305.3 Gates
Access gates shall comply with the requirements of Sections 305.3.1 through 305.3.3 and shall be equipped to accommodate a locking device. Pedestrian access gates shall open outward away from the pool or spa, shall be self-closing and shall have a self-latching device.

305.3.1 Utility or Service Gates
Gates not intended for pedestrian use, such as utility or service gates, shall remain locked when not in use.

305.3.2 Double or Multiple Gates
Double gates or multiple gates shall have not fewer than one leaf secured in place and the adjacent leaf shall be secured with a self-latching device. The gate and barrier shall not have openings larger than $^1/_2$ inch (12.7 mm) within 18 inches (457 mm) of the latch release mechanism. The self-latching device shall comply with the requirements of Section 305.3.3.

305.3.3 Latches
Where the release mechanism of the self-latching device is located less than 54 inches (1372 mm) from grade, the release mechanism shall be located on the pool or spa side of the gate not less than 3 inches (76 mm) below the top of the gate, and the gate and barrier shall not have openings greater than $^1/_2$ inch (12.7 mm) within 18 inches (457 mm) of the release mechanism.

305.4 Structure Wall as a Barrier
Where a wall of a dwelling or structure serves as part of the barrier and where doors or windows provide direct access to the pool or spa through that wall, one of the following shall be required:

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1. Operable windows having a sill height of less than 48 inches (1219 mm) above the indoor finished floor and doors shall have an alarm that produces an audible warning when the window, door or their screens are opened. The alarm shall be listed and labeled as a water hazard entrance alarm in accordance with UL 2017. In dwellings or structures not required to be Accessible units, Type A units or Type B units, the operable parts of the alarm deactivation switches shall be located 54 inches (1372 mm) or more above the
2. finished floor. In dwellings or structures required to be Accessible units, Type A units or Type B units, the operable parts of the alarm deactivation switches shall be located not greater than 54 inches (1372 mm) and not less than 48 inches (1219 mm) above the finished floor.
3. A safety cover that is listed and labeled in accordance with ASTM F1346 is installed for the pools and spas.
4. An approved means of protection, such as self-closing doors with self-latching devices, is provided. Such means of protection shall provide a degree of protection that is not less than the protection afforded by Item 1 or 2.

305.5 On ground Residential Pool Structure as a Barrier
An on ground residential pool wall structure or a barrier mounted on top of an on ground residential pool wall structure shall serve as a barrier where all of the following conditions are present:

1. Where only the pool wall serves as the barrier, the bottom of the wall is on grade, the top of the wall is not less than 48 inches (1219 mm) above grade for the entire perimeter of the pool, the wall complies with the requirements of Section 305.2 and the pool manufacturer allows the wall to serve as a barrier.
2. Where a barrier is mounted on top of the pool wall, the top of the barrier is not less than 48 inches (1219 mm) above grade for the entire perimeter of the pool, and the wall and the barrier on top of the wall comply with the requirements of Section 305.2
3. Ladders or steps used as means of access to the pool are capable of being secured, locked or removed to prevent access except where the ladder or steps are surrounded by a barrier that meets the requirements of Section 305.
4. Openings created by the securing, locking or removal of ladders and steps do not allow the passage of a 4-inch (102 mm) diameter sphere.
5. Barriers that are mounted on top of on ground residential pool walls are installed in accordance with the pool manufacturer's instructions.

305.6 Natural Barriers
In the case where the pool or spa area abuts the edge of a lake or other natural body of water, public access is not permitted or allowed along the shoreline, and required barriers extend to and beyond the water's edge not less than 18 inches (457 mm), a barrier is not required between the natural body of water shoreline and the pool or spa.

305.7 Natural Topography
Natural topography that prevents direct access to the pool or spa area shall include but not be limited to mountains and natural rock formations. A natural barrier approved by the governing body shall be acceptable provided that the degree of protection is not less than the protection afforded by the requirements of Sections 305.2 through 305.5.